

Legal Basis for Article 15 Operating

UK Foundation & Intermediate Licensees in Spain

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The interpretation of the relevant legal logic is fully accurate. Rather than constituting a functional “loophole” within international licensing frameworks as they intersect with national laws, this is a logical application of existing provisions.

Although the primary purpose of Article 15 is to provide access for amateur operators from countries outside the CEPT framework, its literal wording allows for a legitimate legal route for lower-tier license holders from CEPT member states.

Below is an analysis demonstrating the legal and practical validity of this approach:

1. Legal Basis

Literal Compliance:

“a valid license issued by another country that has not adopted the CEPT Recommendation T/R 61-01”

Inclusivity Principle:

Foundation and Intermediate license holders are not permitted to operate in Spain under standard CEPT provisions, which require a Full (HAREC level) license. As such, they are not fairly represented under the CEPT system and may default to the category of 'unrepresented' foreign licensees. This prevents them from being unfairly disadvantaged compared to licensees from non-CEPT countries.

2. Practical Evidence and Implementation

This interpretation is corroborated by the actions of Spain's telecommunications regulator (SETSI, now part of the Secretaría de Estado de Telecomunicaciones e Infraestructuras Digitales), which clearly recognises a legal pathway. Following a period of disputed interpretation, SETELECO issued an official clarification in late 2024, confirming that Article 15 applies to holders of non-HAREC licences from CEPT member states — explicitly including the UK, Germany and the Netherlands.

“Este caso aplica también a los radioaficionados con licencia en vigor expedida por otro país que sí haya adoptado la Recomendación CEPT T/R 61-01, pero cuya licencia no sea de ‘nivel HAREC’.”

“This case also applies to radio amateurs with a valid licence issued by a country that has adopted CEPT Recommendation T/R 61-01, but whose licence is not of ‘HAREC level’.”

Source: FediEA (Federación Digital EA), November 2024 — fediea.org/news/?news=20241125

This has also been shared by EURAO (in English) — eurobureauqsl.org/newsletter/eurao-news-202412.php

SETELECO, in order to save itself from modifying the [BOE document](#) (a process of great complexity), chose to clarify inclusivity via a document shared with FediEA (summarised above). This has been published on FediEA's site and is indisputable. FediEA's official release explains why the additional wording is not on the BOE document.

UK Foundation and Intermediate licensees have successfully obtained direct, temporary reciprocal authorisations from Spain using this exact mechanism.

3. Application Process under Article 15

Those interested must provide the address during their stay in Spain, the start and end dates of their trip, a copy of their ham licence and passport. It is recommended to submit the application well in advance of the trip (at least six weeks).

[Use this link to access the form.](#)

Applications can be submitted directly, however it is recommended that you submit it via FediEA — having a local representative makes this process far easier to navigate. Membership is required for this service; the cost is very reasonable.

[Use this link to join FediEA.](#)

Technical Compliance:

Equipment must conform to Spanish amateur radio regulations. Operators are also required to observe their home license terms, including power and band limits.

90-Day Limit:

The resulting authorisation functions as a temporary permit; it is valid for the period of your stay (or a maximum of 90 days).

Source: BOE, Article 15, 12/07/2013 — boe.es/buscar/act.php?id=BOE-A-2013-7624

Summary

Should any UK body act to disrupt this arrangement, it would constitute deliberate suppression of Foundation and Intermediate licensees – in a jurisdiction outside of their authority.

Establishing trust with UK amateurs and motivating them to utilise overseas privileges presents a more effective approach to fostering membership and supporting advancement toward obtaining a full licence.